



Appeal Decision

Site visit made on 25 August 2026

by S. Hartley BA (Hons) Dist.TP (Manc), DMS, MRTPI, MRICS

an Inspector appointed by the Secretary of State

Decision date: 8 September 2026

Appeal Ref: 6014250

3 Booth Terrace, Dean House Lane, Luddenden, Sowerby Bridge, Calderdale HX2 6TJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 against a refusal to grant planning permission.
 - The appeal is made by Charlotte Jackson against the decision of Calderdale Metropolitan Borough Council.
 - The application Reference is 26/00306/HSE.
 - The development proposed is a single storey extension to the front.
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Decision

1. The appeal is dismissed.

Procedural Matter

2. On 17 August 2026, the Government published a revised National Planning Policy Framework (the Framework). This is a relevant material planning consideration of 'critical importance' from a decision-making point of view. In respect of the main issues, the Framework has not materially changed the assessment in this appeal, and it has not been necessary for me to consult the main parties upon it.

Main Issues

3. The appeal property is located within the Green Belt.
4. The main issues are therefore (i) whether the proposed development is inappropriate development within the Green Belt; (ii) the effect of the development upon the character and appearance of the area; (iii) the effect upon the Special Landscape Area; iv) the effect upon heritage assets and (v) if the proposal is inappropriate development in the Green Belt, whether the harm, by reason of inappropriateness and any other harm, is clearly outweighed by other considerations so as to amount to very special circumstances to justify development.

Reasons

Whether inappropriate development

5. GB6 of the Framework states that inappropriate development is, by definition, harmful to the Green Belt, and should not be approved except in very special circumstances. However, Policy GB7 permits certain exceptions, and which are not to be regarded as inappropriate development in the Green Belt. One exception, at GB7:1(b), is for *'the reuse, extension, alteration or replacement of an existing building, provided that the existing building is of permanent and substantial*

construction, is lawful in planning terms, and any extension or alteration will not result in a disproportionate increase in size compared to the original building’.

6. Footnote 40 to the Framework defines ‘original building’ as ‘*a building as it existed on 1 July 1948 or, if constructed after 1 July 1948, as it was built originally*’. There is no evidence before me that the original dwelling has been extended to date.
7. On my site visit, I was able to see that the building is of permanent and substantial construction and I have no reason to believe that it is not lawful. A report by a structural engineer, prepared on behalf of the appellant, notes that the building is in ‘*a good structural condition*’ subject to the correction of certain defects. There is no suggestion that the proposed extension is required in order to correct the specified defects.
8. The Framework does not include a definition of what constitutes a disproportionate addition over and above the size of the original building. Furthermore, I have not been referred to any development plan policy or local guidance which defines what is a disproportionate addition.
9. The local planning authority (LPA), in its officer report, considers that ‘*the single-storey extension would have a gross external area of 7.2 sq.m, and the GEA of the original building is around 34 sq. m over two floors. There would be an increase in area of around one fifth. This extension would not be considered to be disproportionate in the context of the existing dwelling*’.
10. While I cannot be certain about the quoted dimensions, on my site visit I was able to assess the extent of the proposed extension in relation to the existing dwelling in volumetric and visual terms. I find that the proposal would not constitute a disproportionate addition to the original building.
11. Therefore, I conclude that the proposal would not amount to inappropriate development in the Green Belt as it would meet an exception as outlined in GB7 of the Framework.

Character and appearance

12. The host property forms part of a two-storey, stone built terrace with a double pitched roof. The terrace has a uniform original design, with unbroken roofs, common eaves and ridge lines, and with small amenity spaces in front of them facing directly onto the highway. Several of the dwellings in the row have small porch additions, though these do not extend across the full width of their houses. The common use of external materials and the general symmetry of the terrace, despite the small additions, adds distinctively and positively to its character and appearance and that of the area.
13. The proposed development is for a single storey, front extension which would be constructed across the whole frontage of the dwelling. The appellant considers that the proposed development, by its floor area, would be little different to what is allowed in the General Permitted Development Order for front porches. However, in my judgement, by its size and length, it would have a significantly harmful effect upon the pleasing rhythm of the terrace, and would interrupt its building line, adversely exceeding the size of the more acceptable small porches which already exist elsewhere on the terrace. While the use of natural stone to match the host

property would be a mitigating factor, it would not compensate sufficiently to overcome these adverse effects.

14. The appellant has referred to an approval for a front extension to a dwelling at Beckside Shelf within the Borough. However, the approval relates to a modern dwelling forming part of a pair of semi-detached dwellings, very different to the terrace to which the appeal property forms a part. In any event, I have determined the appeal based upon its individual merits.
15. Therefore, I conclude that the proposed development would adversely affect the character and appearance of the area and, therefore, would not accord with policy BT1 of the Calderdale Local Plan 2018/19-2032/33 (LP) or with the Calderdale Placemaking and Design Guide Supplementary Planning Document 2024 (SPD), or with DP3 of the Framework, all of which require development to be of good design which respects or enhances the existing buildings and surroundings.

Landscape character

16. There is an overlap between an assessment of the character and appearance of the host property and the terrace of which it forms a part, and the Special Landscape Area (SLA) within which it is located.
17. The appeal site is listed within that part of the SLA known as Luddenden Dean Landscape Character Area, characterised by its rural environment including traditional stone-built settlements and farm buildings.
18. The SLA covers a large geographic area and where individual developments might be considered to make only a small change to its landscape character. However, in my judgement, the general scarcity of buildings means that small changes are more visually prominent than in other more densely developed parts of the SLA. I consider that in the case of the appeal proposal, there would be a minor, adverse impact upon the landscape character of the SLA.
19. Therefore, I conclude that the proposed development would cause harm to the Special Landscape Area and would not accord with Policy GN4 of the LP which aims to ensure that development does not adversely affect the scenic quality of the SLA, and those elements which contribute to its significance.

Heritage assets

20. Section 66 of the Planning (Listed Buildings and Conservation Areas) Act 1990 requires that in considering whether to grant planning approval for development which affects a listed building or its setting, special regard shall be had to the desirability of preserving it or its setting or any features of special architectural or historic interest which it possesses.
21. Broadfold Hall (LB) is an imposing Grade II Listed Building (LB) located within an extensive, private, landscaped setting and which visually enhances the building. The proposed development is approximately 240 metres from the LB, and by its limited size, location and intervening distance, would have no effect upon its setting.

22. No. 2 Lower Holme House is a Grade II LB, located amongst a small cluster of stone built properties in a roadside setting, all of which adds visually to the significance of the LB. As with the effect upon the setting of Broadfold Hall, the appeal proposal, by its limited size, location and its intervening distance of approximately 313 metres, would have no effect upon its setting.
23. The LPA also considers that, by its age and design, the terrace itself is an asset of local heritage value. However, I have no objective information before me to justify that the appeal site is indeed of historical, cultural or other heritage importance. Moreover, there is no report by the Council's Conservation officer and I am not aware of any other heritage assessment which might support the view of the LPA in terms of its heritage importance or significance.
24. Therefore, I conclude that there is no evidence to support the contention that the property is a non-designated heritage asset. In addition, as I have found that there would be no effect upon the LBs, the proposed development would accord with LP Policy BT1 and HE5 of the Framework which require development to take account of its impact upon heritage assets and to avoid harm to them.

Conclusion

25. While I have found that the proposed development would not be inappropriate in the Green Belt and would not adversely affect any heritage asset, I have concluded that it would adversely affect the character and appearance of the dwelling, the terrace and the SLA. These latter matters are of overriding concern which outweigh those other issues.
26. There are no material planning considerations that indicate that the application should be determined other than in accordance with the development plan. Therefore, the appeal should be dismissed.

S. Hartley

INSPECTOR